

the delay affected, misled, or prejudiced the opposing party.” (*Hoover v. American Income Life Ins. Co.* (2012) 206 Cal.App.4th 1193, 1204.)

There is no evidence that Moving Defendants have conducted extensive discovery, substantially delayed in pursuing their right to arbitration, or taken advantage of procedures only available in court. As such, this argument fails. However, since CCP § 1281.2(c) is applicable, this motion is denied.

2.

CASE #	CASE NAME	HEARING NAME
CVME2517406	LOSADA VS OBEIDIN	DEMURRER ON 1 ST AMENDED COMPLAINT

Tentative Ruling: Demurrer to First and Second Causes of Action sustained with 20 days leave to amend.

Meet and Confer - The parties’ counsel met and conferred by telephone before this motion was filed. This is sufficient to meet the meet and confer requirements under CCP § 430.41. (Declaration of Roberta A. Kraus, ¶ 4.)

Merits - A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly alleged, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Kattelman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

CSU is a government entity. Under the California Tort Claims Act (“Tort Act”) (Government Code §§ 810, et seq.), government tort liability must be based on a statute. (*Michael J. v. Los Angeles County Dept. of Adoption* (1988) 201 Cal.App.3d 859, 866.) The Tort Act specifically states: “[e]xcept as otherwise provided by statute: (a) public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” (Government Code § 815.)

The two causes of action at issue in this motion are the first cause of action for negligence and the second cause of action for negligent supervision. A cause of action for negligence requires a duty of care owed by the defendant to the plaintiff, breach of this duty, causation, and damages, (*Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 305.) “To establish negligent supervision, a plaintiff must show that a person in a supervisory position over the actor had prior knowledge of the actor’s propensity to do the bad act.” (*Z.V. v. County of Riverside* (2015) 238 Cal.App.4th 889, 902.)

As discussed above, the Tort Act requires that tort liability against a government entity be based on a statute. (*Michael J. v. Los Angeles County Dept. of Adoption* (1988) 201 Cal.App.3d 859, 866.) Additionally, such a cause of action must be alleged with particularity. “In view of the fact that tort causes of action against public entities are now based on statute, the general rules that statutory causes of action must be pleaded with particularity is applicable. Every fact essential to the existence of statutory liability must be pleaded.” (*Susman v. Los Angeles* (1969) 269 Cal.App.2d 803, 809.) “[A] direct claim against a government entity asserting negligent hiring and supervision, when not grounded in the breach of a statutorily imposed duty owed by the entity to the injury party, may not be maintained.” (*de Villers v. County of San Diego* (2007) 156 Cal.App.4th 238, 255-256.)

The first cause of action for negligence and the second cause of action for negligent supervision are both based on Government Code §§ 815.2 and 815.6 and Education Code § 66307. Both of these causes of action are based on injuries sustained by Plaintiff due to the traffic accident that occurred in Riverside County. (FAC, ¶¶ 136 and 145.) Under Government Code § 815.2(a), “[a] public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against the employee or his personal representative.” “When assessing a claim for vicarious liability against a governmental employer based on the acts or omissions of its employee, a court must examine whether the employee who acted or failed to act would have been personally liable for the injury.” (*de Villers v. County of San Diego* (2007) 156 Cal.App.4th 238, 249.)

“In general, each person has a duty to act with reasonable care under the circumstances. However, ‘one owes no duty to control the conduct of another, nor to warn those engaged by such conduct.’” (*Regents of University of California v. Superior Court* (2018) 4 Cal.5th 607, 619.) There is generally no duty to protect others from the conduct of third parties. (*Id.* at 627.) There is a special relationship between colleges and students when the students are engaged in activities that are part of the school’s curriculum or closely related to its delivery of educational services. (*Id.* at 625-626.)

Colleges generally have little say in how students behave off campus, or in their social activities unrelated to school. It would be unrealistic for students to rely on their college for protection in these settings, and the college would often be unable to provide it. This is another appropriate boundary of the college-student relationship: Colleges are in a special relationship with their enrolled students only in the context of school-sponsored activities over which the college has some measure of control.

(*Id.* at 626.) The special relationship between colleges and students “extends to activities that are tied to the school’s curriculum but not to student behavior over which the university has not significant degree of control.” (*Id.* at 627.)

CSU contends that there are no factual allegations that show one or more of its employees owed Plaintiff a duty of care and breached this duty. It asserts there are no factual allegations that CSU employees created the peril posed by Plaintiff’s travel to a non-CSU sanctioned event hours away from campus. It asserts that no CSU employees owed it a special duty of care. CSU’s arguments appear to have merit. First, neither the

first nor the second causes of action identify any CSU employee. They fail to identify what this employee did or failed to do. The first and second causes of action just generically contend CUS is liable through the acts and omissions of its employees within the course and scope of their employees. (FAC, ¶¶ 133 and 141.) As discussed above, tort causes of action against government entities must be alleged with particularity. (*Susman, supra*, 269 Cal.App.2d at 809.) These conclusory allegations do not meet this heightened pleading requirement.

Plaintiff points to allegations in his general allegations section of the FAC. However, these allegations are insufficient. The FAC alleges that PKA was a student organization at CSULB. (FAC, ¶ 9.) Student organizations were required by CSU to agree to anti-hazing rules, the use of property with conditioned on compliance of the rules, and assigned personnel with responsibility for oversight, investigation, and discipline of recognized student organizations. (FAC, ¶ 74.) He alleges on information and belief Trace Camacho, and Associate Dean of Students and the Fraternity and Sorority Life advisor observed and received reports of activity consistent with hazing and pledge-control practices. (FAC, ¶ 79.) Weekly status meetings and pledge activities were alleged held on campus and CSU property. (FAC, ¶ 63.) During these status meetings, pledges were required to do acts of servitude for active members. (FAC, ¶ 64.) Pledges were required to assume and maintain positions and then punished by being required to lie on the floor of CSU buildings for failing to maintain said positions. (FAC, ¶ 65.) Pledges were also required to wear suits to workout at the CSU gym. (FAC, ¶ 67.)

The conduct at issue that resulted in Plaintiff's injuries was a traffic accident that occurred in Riverside County (not on CSU property) due to activity that allegedly occurred at a retreat that took place at a location that was not on CSU property. There are no allegations that the retreat was sponsored by CSU. There is no allegations that CSU employees had any involvement or knowledge of the retreat. Plaintiff fails to point to any authority that supports that CSU could be liable for Plaintiff's injuries based on this conduct. Due to this, liability under Government Code § 815.2 fails.

Education Code § 66307 states "[n]o person shall be subjected to hazing in any program or activity conducted by any education institution that receives, or benefits from, state financial assistance or enrolls students who receive state student financial aid." Under Government Code § 815.6, "[w]here a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty." Government Code § 815.6 only applies if the statute at issue imposes a mandatory duty. (*Clausing v. San Francisco Unified School Dist.* (1990) 221 Cal.App.3d 1224, 1239.) A mandatory duty does not simply require a statute prohibiting conduct, it also requires guidelines or rules for the government entity to implement to fall within Government Code § 815.6. (*Id.* at 1239-1240.)

In *Clausing* the applicable statutes were Education Code §§ 49000 and 49001. Education Code § 4900 stated:

The Legislature finds and declares that the protecting against corporal punishment, which extends to other citizens in other walks of life, should include children while they are under the control of the public schools. Children of school age are at the most vulnerable and impressionable period of their lives and it is wholly reasonable that the safeguards to the integrity and sanctity of their bodies should be, at this tender age, at least equal to that afforded to other citizens.

Education Code § 49001 sets forth the definition of corporal punishment and identifies two instances that are not considered corporal punishment. It also states that no individual employed by a public school shall inflict corporal punishment on a pupil and that rules, ordinances, bylaws, resolutions, or other acts authorizing corporal punishment are void and unenforceable. (*Clauson, supra*, 221 Cal.App.3d at 1240 f. 8.) The Court found that these statutes were not sufficient to impose a mandatory duty under Government Code § 815.6.

The Court stated:

These statutes are clearly prohibitory in effect, they set forth an express statutory prohibition on certain conduct, with certain enumerated exceptions. Although they may establish important rights and confer significant benefits on members of the public, they do not create any mandatory, affirmative duty on the part of the public schools and school districts to take action or carry out measures to ensure that students are never subjected to corporal punishment by teachers. The statute set forth no guidelines or rules for schools to follow in implementing an affirmative duty to prevent corporal punishment.

(*Id.* at 1240.) “[T]hese provisions are simply declarations or rights, imposing no mandatory duties upon respondents affirmatively to ensure or to guarantee the protection of the particular stated rights to safe schools and privacy. They fail to supply the necessary rules for implementation of the rights they set forth.” (*Id.* at 1241.)

Education Code § 66307 is very similar to Education Code §§ 49000 and 49001. While it prohibits conduct (hazing in any program or activity conducted by any education institution that receives or its students receive state financial assistance), it does not set forth necessary rules for implementation of these rights. Due to this, CSU’s argument has merit, and liability cannot be asserted based on Education Code § 66307 and Government Code § 815.6.

Since Plaintiff has failed to sufficiently allege liability based on Government Code §§ 815.2 and 815.6 or Education Code § 66307, the demurrer is sustained as to the first and second causes of action against CSU with leave to amend.

3.

CASE #	CASE NAME	HEARING NAME
CVSW2401577	HENDERSON VS HEMET UNIFIED SCHOOL DISTRICT	MOTION TO COMPEL FURTHER DISCOVERY RESPONSES AND FOR PRODUCTION OF DOCUMENTS

Tentative Ruling: Motion granted in part. Granted as to RFP Set Two 1-17. Defendant to serve further verified code compliant responses to all non-privileged documents